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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Ginevra Cerrina Feroni, Vice President,
Dr. Agostino Ghiglia and Attorney Guido Scorza,
members, and Dr. Claudio Filippi, Deputy
Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of national legislation to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING by Dr. Agostino Ghiglia;

PREMISE

1. Introduction.

With a complaint submitted pursuant to Article 77 of the Regulation, Mr. XX complained that the Municipality of San Severo (FG) (hereinafter "Municipality"), where he works, published on its official website three resolutions (Resolution for the disbursement of the incentive fund for XX, XX, and XX) containing "the list of employees [... name, surname, category of belonging, and amount disbursed] in proportion to individual performance."

2. The investigative activity.

With note prot. n. XX of XX in response to a request for information from the Guarantor (note prot. n. XX of XX), the Municipality stated, in particular, that:

"the resolutions published, which are the subject of the complaint in question, are 'specifically [...]: resolution R.G. n. XX of XX, published on the same date, for the disbursement of the incentive fund for XX; resolution R.G. n. XX of XX, published on the same date, for the disbursement of the incentive fund for XX; resolution R.G. n. XX of XX, published on the same date, for the disbursement of the incentive fund for XX'

'following the entry into force of the GDPR, [the Municipality] has initiated the process of adapting to the European Regulation: - identifying externally the Data Protection Officer; - preparing for approval the updated organizational model of the Entity regarding the processing of personal data, according to which the competencies of the data controller are assigned to the bodies of the Municipality in relation to the functions assigned to them by Legislative Decree No. 267/2000 and the municipal statute, with the assignment of specific tasks to the managers of the organizational areas, as delegates to the data

controller function, and with formalization of instructions and security guidelines for the processing of data managed by the Municipality by those authorized to do so; - providing necessary training to employees and collaborators. At the same time, a section of the Municipality's website homepage has been dedicated to the topic of data processing, including references to the measures adopted and general information related to the various services and activities managed';

'in order to avoid errors and misinterpretations in the publication of acts, the following organizational measures have also been adopted: the Secretary General issued General Directive No. XX of XX addressed to all employees concerning "NETWORK DISSEMINATION OF PERSONAL DATA – BALANCING BETWEEN TRANSPARENCY AND PROTECTION OF PERSONAL DATA – SELF-CONTROL CHECKLIST TO PREVENT ERRORS IN DATA PUBLICATION OPERATIONS";

'despite the above representation, "following the notification of [...] the request for information [from this Authority], it was found, however, that: on the official website of the Municipality of San Severo, in the section of the Public Register, the section called "Public Register Archive" was erroneously active, resulting in the publication of acts even beyond the prescribed publication period; in the section "Transparent Administration" under the subsection "Provisions," the deliberative acts and full determinations have been reported starting from XX";

'following the verification conducted by the Municipality's Automation Service, in contradiction with the supplier responsible for the maintenance of the official website, it was found that the presence of the section "Public Register Archive" would be...

a mere configuration error of the website following its adjustment to the AgID guidelines; the consultation function of the historical records had indeed been deactivated, but probably following the update of the application, it was inadvertently reactivated";

"in this regard, following a request from the Entity and the Automation Service, the supplier responsible for the maintenance of the institutional website promptly proceeded, as evidenced by the internal report produced by the head of the Automation Service, to: eliminate the historical function of the public register and the consultation of deliberative acts from the institutional website; remove the link to the old site with the related inhibition to search engines";

"regarding the section 'Transparent Administration' of the institutional website, under the subsection 'Measures', the Automation Service of the Entity verified the incorrect setting of automatic publications and consequently immediately requested the supplier responsible for the maintenance of the institutional website to correct the setting of automatic publications, in accordance with the provisions of Article 8, paragraph 3, of Legislative Decree No. 33/2013. Furthermore, pending the completion of further corrective technical interventions by the supplier responsible for the maintenance of the institutional website, on date XX the Automation Service of the Entity requested the same to temporarily suspend the consultability of said subsection";

"having stated all of the above, [...] it is represented that: regarding the legal basis for the processing concerning the publication of managerial determinations related to the liquidation of the incentive fund for XX, XX, and XX - or any other act containing the list of names of employees associated with the incentive payments on individual productivity and/or the amounts related to the attribution of economic progressions - on the website of the Municipality and/or on the online public register, the data related to the productivity of employees (specifically: name, surname, category and economic position, amount of productivity recognized), have been reported in the indicated acts probably due to an incorrect interpretation of the norm by the designated office; however, the evaluation sheets of individual employees are not attached, nor are the corresponding scores assigned to them reported";

"regarding the period during which such documents were available and/or are still available on the institutional website of the Municipality and/or online, the documents in question were available on the site from their publication until day XX [...], and are currently no longer available, as the supplier responsible for the maintenance of the institutional website has promptly carried out the correct configuration of the publication application and has deactivated the functions for consulting historical documents."

With note dated XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out,

and the facts emerged following the investigative activity, notified the Municipality pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, concerning the alleged violations of Articles 5, paragraph 1, letter a) and 6, paragraph 1, letters c) and e) of the Regulation and Article 2-ter of the Code, inviting the aforementioned holder to produce defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With note dated XX, the Municipality submitted a defensive memorandum, stating, in particular, that: "the Office that adopted the measures for the liquidation of the performance bonus, subject to complaint, acted in good faith, based on the circumstance that from the measure of attribution of the payment it was not possible to infer any data regarding the specific situation of the employee, as it concerned predetermined economic amounts by law and based on the CCNL";

"it is noted that the total amounts liquidated were to be understood as divided for each Area proportionally to the number of all employees in service and that no reference to the evaluation sheets had been included";

the Municipality "following the request for information [...], immediately took action to comply with the current regulations, in an attempt to prevent any future conduct of violation of privacy regulations";

"in addition to the technical and organizational measures referred to in Articles 25 and 32 of the Regulation already communicated with a previous note, in order to ensure further strengthening of the actions already adopted, the Municipality [...] also: updated the Code of Conduct for municipal employees with Resolution of the Executive Board No. XX of XX; adopted the Organizational Model for the protection of personal data (MOPD) with Resolution of the Executive Board No. XX of XX, in order to establish specific organizational methods, procedural measures, and detailed rules, aimed also at harmonizing interpretative issues, which allow this Entity to act with adequate functionality and effectiveness in implementing the provisions introduced by EU Regulation 2016/679"; provided training sessions to all staff of the Entity in collaboration with the RPD Service [...]; scheduled further training courses for the year XX, to provide continuous and constant updates to employees on privacy sector regulations";

"it is therefore requested, in order to calibrate correctly the responsibility, to assess the actual and concrete damage suffered by the applicant, given that in the merits it does not appear that the dissemination of so-called "particular" data or "related to criminal convictions and offenses" emerges, as there are no references to performance evaluation sheets for determining the accessory amount.

3. Outcome of the investigative activity.

3.1 The regulatory framework

The regulation on the protection of personal data provides that public entities, within the work context, may process personal data of the data subjects, including data related to special categories, if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided by law or by Union or Member State law (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). The processing is also lawful when it is "necessary for the performance of a task carried out in the public interest or in the exercise of public powers vested in the data controller" (Article 6, paragraphs 1, letter e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Article 2-ter of the Code). Such processing must, in any case, be grounded in Union or Member State law, which must pursue a public interest objective and be proportionate to the pursuit of the same. The purpose of the processing must be necessary for the execution of a task carried out in the public interest or related to the exercise of public powers vested in the data controller (cf. Article 6, paragraph 3, of the Regulation and Article 2-ter of the Code). The data controller is required, in any case, to comply with the principles regarding data protection, among which are "lawfulness, fairness, and transparency" as well as "data minimization," according to which personal data must be "processed in a lawful, fair, and transparent manner in relation to the data

subject" and must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed" (Article 5, paragraph 1, letters a) and c), of the Regulation).

3.2 The dissemination of personal data.

As evidenced by the documents, as well as by the findings made based on the elements acquired, following the investigative activity and the subsequent evaluations of the Office, it appears that the Municipality has published on its institutional website the resolutions related to the disbursement of the incentive fund for the years XX, XX, and XX containing the lists of approximately 140 employees, the economic position of each, as well as the amount of compensation individually received in relation to individual productivity (specifically the resolutions R.G. no. XX of XX, published on the same date, for the disbursement of the incentive fund of 2XX; R.G. no. XX of XX, published on the same date, for the disbursement of the incentive fund of XX; R.G. no. XX of XX, published on the same date, for the disbursement of the incentive fund of XX). The publication of the aforementioned acts - containing personal data of the complainant and other interested parties ("specifically: name, surname, category and economic position, amount of productivity recognized") - lasted from the day of the issuance of each resolution until XX, the day on which, following the initiation of the present investigation, realizing the error, the Municipality took action, also through the involvement of the service provider for the management and maintenance of the website, to remove the personal data from its institutional site.

In this regard, reiterating that the regulatory framework on the protection of personal data requires for any processing operation (Article 4, point 2 of the Regulation) including dissemination (Article 2-ter, paragraph 4, letter b) of the Code) the necessity of having an appropriate legal basis, it is noted that the Authority has provided guidance since 2007 regarding the prerequisites (and the occurrence of these, the specific modalities) for the lawful publication of acts and documents containing personal data of employees, specifying, in particular, that it is not lawful to disseminate personal information relating to individual workers, concerning, for example, individual employment contracts, salary or accessory treatments received, through their publication, even online (cf. paragraph 6.3 of the "Guidelines on the processing of personal data of workers for the purposes of managing the employment relationship in the public sector" of June 14, 2007, web doc no. 1417809; see also provision of May 15, 2014 no. 243 "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for publicity and transparency purposes on the web by public entities and other obligated entities" web doc no. 3134436).

During the investigation, the Municipality represented that "on the institutional website of the Municipality of San Severo, in the section of the Praetorian Register, the section called 'Praetorian Register Archive' was erroneously active, resulting in the publication of acts even beyond the prescribed publication period, thus erroneously attributing the scope of the processing in question to the fulfillment of the publication obligations under Article 124 of Legislative Decree no. 267 of August 18, 2000 (Consolidated Law on the regulations of local authorities) which regulates publication for 15 days on the Praetorian Register of the Entity's resolutions. This regulation, however, establishes nothing regarding the publication of the resolutions subject to the present investigation, concerning the disbursement of the incentive fund for employees. The Authority has clarified on numerous occasions that, even the presence of a specific

****Advertising Regime Regarding Certain Categories of Acts****

The advertising regime concerning certain categories of acts, a circumstance that does not occur in the present case, cannot entail any automaticity regarding the online dissemination of personal data contained therein, nor a derogation from the principles concerning the protection of personal data, as only necessary, relevant, and non-excessive data concerning the specific purposes pursued by the sector regulation may be disseminated (see provision of January 26, 2023, no. 28, web document no. 9865528 and the provisions referenced therein).

In this regard, it is specified that all limits provided by the principles of personal data protection apply to publications on the online Albo Pretorio of acts or resolutions, primarily considering the existence of suitable lawful bases for the online dissemination of the personal data contained therein, even before any potential minimization of the same.

Furthermore, regarding publication in the "Transparent Administration" section of the institutional website, the Municipality must always verify, based on a responsible and careful assessment, which data and information to publish in accordance with the sector regulations governing the methods, times, and forms of advertising, as the provisions of Article 8, paragraph 3, of Legislative Decree no. 33/2013, referenced by the Municipality, are not automatically applicable.

In this regard, it is noted that Legislative Decree of March 14, 2013, no. 33 provides for the mandatory publication by public administrations of the "total amount of performance-related bonuses allocated and the amount of bonuses actually distributed," as well as "the average amount of the bonus achievable by staff [...], the data relating to the distribution of additional remuneration, in aggregated form" (Article 20, paragraphs 1 and 2, Legislative Decree no. 33/2013).

The transparency objective pursued through this provision, in order to highlight the levels of selectivity and reward "in the distribution of bonuses and incentives" to staff, is effectively achieved, by express choice of the legislator, through the publication of the aforementioned values "in aggregated form" and not nominatively.

Given the absence of a provision for the obligation to publish this type of personal data among the cases specifically listed by the legislator in Chapter II of the aforementioned legislative decree or in any other specific regulation on transparency, the regime of accessibility established by transparency regulations does not apply to the present case, including the specific provision concerning the five-year period of permanence on the web (as per Article 8, paragraph 3, of Legislative Decree no. 33/2013; in this regard, see introduction, part I, point I and part II, Guidelines of May 15, 2014; provision no. 457 of July 30, 2015, web document no. 4278610).

In this context, it is acknowledged that the Municipality itself, during the investigation, declared that the publication of the aforementioned resolutions, containing personal data relating to the remuneration received by each employee based on their productivity, occurred due to an incorrect interpretation of the applicable sector regulations by the responsible office.

Regarding the extensive period of permanence of the aforementioned personal data on the website, the Municipality represented, as mentioned, that this was caused by a configuration error of the website with the reactivation of the consultation function that had originally been deactivated, following the update of the application.

In this regard, it is recalled, in any case, that the data controller must implement "appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of processing are processed" and must be "able to demonstrate" – in light of the principle of "accountability" – that they have done so (Articles 5, paragraph 2; 24 and 25, paragraph 2, Regulation). This is also to avoid similar errors to those that occurred in the present case.

While favorably acknowledging the technical and organizational measures that the Municipality intends to implement following the incident in question, precisely to prevent violations of the regulations concerning the protection of personal data, it must be concluded, for the reasons outlined above, that the personal data of approximately 140 municipal employees, including the complainant, relating to names, economic positions, and compensation received based on individual productivity for the years XX, XX, and XX have been disseminated on the Municipality's institutional website in the absence of an appropriate legal basis, in violation of Articles 5, paragraph 1, letter a) and 6, paragraph 1, letters c) and e) of the Regulation and Article 2-ter of the Code.

****4. Conclusions.****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the veracity of which may be subject to accountability under Article 168 of the Code – while deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for in Article 11 of the Garante Regulation no. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Municipality is noted for having disseminated through online publication on its institutional website the resolutions related to the disbursement of the incentive fund for the years XX, XX, and XX containing the lists of names of approximately 140 employees, the economic position of each, as well as the amount of compensation individually received.

perceived in relation to individual productivity, in violation of Articles 5, paragraph 1, letter a) and 6, paragraph 1, letters c) and e) of the Regulation and Article 2-ter of the Code. The violation of the aforementioned provisions makes the administrative sanction provided for in Article 83, paragraph 5, of the Regulation applicable, pursuant to Articles 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as also referred to by Article 166, paragraph 2, of the Code.

In this context, considering, in any case, that the conduct has exhausted its effects, given that they have been removed from the institutional website of the Municipality, the prerequisites for the adoption of further corrective measures referred to in Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code). The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for in Article 83, paragraph 5, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for in Article 83, paragraph 2, of the Regulation.

In relation to the aforementioned elements, the particular sensitivity of the personal data subject to online dissemination of numerous interested parties concerning matters related to the employment relationship, with particular reference to the outcomes of evaluation procedures and the consequent salary effects for the employees of the Municipality, has been considered. It has also been considered the failure to comply with the indications that, for some time, the Guarantor has provided to all public entities with the aforementioned Guidelines and in numerous measures on individual concrete cases adopted over the years by the Guarantor.

On the other hand, it has been taken into account that the violation did not concern particular categories of personal data and that the Municipality acted based on an erroneous interpretation of the sector regulations. Finally, there are no previous relevant violations committed by the data controller or previous measures pursuant to Article 58 of the Regulation.

In light of the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €10,000 (ten thousand) for the violation of Articles 5, paragraph 1, letter a) and 6, paragraph 1, letters c) and e) of the Regulation and Article 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that the personal data, subject to online dissemination, concerned the individual remuneration received by approximately 140 municipal employees, including the complainant, following evaluations related to productivity, it is also deemed that the accessory sanction of publication on the Guarantor's website of this provision, provided for by Article 166, paragraph 7 of the Code and Article 16 of the Guarantor's Regulation No. 1/2019, should be applied.

It is finally noted that the prerequisites referred to in Article 17 of Regulation No. 1/2019 exist.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the municipality of San Severo for violation of Articles 5, paragraph 1, letter a) and 6, paragraph 1, letters c) and e) of the Regulation and Article 2-ter of the Code, in the terms set out in the motivation;

ORDERS the Municipality of San Severo, in the person of the legal representative pro tempore, with legal headquarters at Piazza Municipio 1 - 71016 San Severo (FG), Tax Code 00336360714, to pay the sum of €10,000 (ten thousand) as an administrative pecuniary sanction for the violations indicated in the motivation.

It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ENJOINS the aforementioned Municipality, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €10,000 (ten thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;

DISPOSES pursuant to Article 166, paragraph 7, of the Code, the publication of this provision on the Guarantor's website, considering that the prerequisites referred to in Article 17 of the Guarantor's Regulation No. 1/2019 exist.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, September 14, 2023

THE VICE PRESIDENT
Cerrina Feroni

THE REPORTER
Ghiglia

THE DEPUTY SECRETARY GENERAL
Filippi